CRIMINAL SCENARIO: ROAD ACCIDENT (RASH & NEGLIGENT DRIVING VS MOTOR CLAIMS

FACTUAL MATRIX & DISPUTE: A speeding vehicle jumps a red light and hits a pedestrian or two-wheeler, causing severe injuries or death. Driver flees the scene (hit and run).

LEGAL STANDING & PROSECUTION PROVISIONS:

1. Criminal Liability of Accused Driver:

- Section 279 IPC / Section 281 BNS: Rash driving or riding on a public way so as to endanger human life.
- Section 337 & 338 IPC / Section 125 BNS: Causing hurt or grievous hurt by endangering life or personal safety of others.
- Section 304A IPC / Section 106(1) BNS: Causing death by negligence not amounting to culpable homicide.
- Section 106(2) BNS (Hit and Run): Failure to report accident to police officer or magistrate immediately attracts enhanced punishment up to 10 years imprisonment.

2. Victim & Family Civil Remedies (Motor Accident Claims Tribunal - MACT):

- Section 166 Motor Vehicles Act, 1988: Claim petition for compensation against driver, owner, and insurance company.
- Computation of Compensation (Sarla Verma v. DTC & National Insurance v. Pranay Sethi, Supreme Court): Multiplier method applied to victim’s income, future prospects (40-50%), loss of consortium, funeral expenses, and loss of estate. Insurance company strictly liable to pay.

CRIMINAL SCENARIO: RIGHT OF PRIVATE DEFENCE (SELF-DEFENCE OF BODY & PROPER

FACTUAL MATRIX & DISPUTE: An individual is ambushed at night by armed intruders threatening murder or rape. The defender strikes back with a weapon, causing severe injury or death to the assailant. Accused claims self-defence.

LEGAL STANDING & STATUTORY EXCEPTION:

1. Section 96 IPC / Section 34 BNS: Things done in private defence. Nothing is an offence which is done in the exercise of the right of private defence.
2. Section 97 IPC / Section 35 BNS: Right of private defence extends to defence of own body and body of any other person, and property (movable or immovable) against theft, robbery, mischief, or criminal trespass.
3. Section 100 IPC / Section 38 BNS: When Right of Private Defence of Body Extends to Causing Death:
- Reasonable apprehension of death;
- Reasonable apprehension of grievous hurt;
- Act with the intention of committing rape;
- Act with intention of gratifying unnatural lust;
- Act with intention of kidnapping or abducting;
- Act with intention of wrongfully confining a person under circumstances where public authorities cannot be accessed.
4. Section 103 IPC / Section 41 BNS: Private defence of property causing death (Robbery, house-breaking by night, mischief by fire).
5. Section 99 IPC / Section 37 BNS: Acts against which there is no right of private defence. Must not inflict more harm than necessary for the purpose of defence.
6. Landmark Precedent: Darshan Singh v. State of Punjab (2010) Supreme Court: Formulated 10 cardinal principles of private defence; a person facing imminent peril cannot be expected to weigh strikes in golden scales.